

**JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION
FOR NON-NSN AND LSN ACQUISITIONS**

1. Agency: DLA-Aviation - DSCR Contracting Activity: Industrial Plant Equipment Services Division
Document Identification Number: IPE# 19-40-1015, EBS #92781200 Solicitation Number: SPE4A8-22-Q-0046
☐ FAR Part 15 ☐ FAR Part 12 ☒ FAR Part 13.5

2. The action being approved is the acquisition of supplies/services on other than a full and open competition for Non-NSN and LSN acquisitions.

☒ New Action ☐ Amendment: _____

3. The supplies/services required to meet the using activity's needs are described as follows:

BRIEF DESCRIPTION	P/N / LSN	QUANTITY	ESTIMATED VALUE
Plasma Spray Booth with grit blast booth	NOT APPLICABLE	1	

DETAILED DESCRIPTION

This is a NON-NSN BUY, INDUSTRIAL PLANT EQUIPMENT DIVISION. Plasma Spray Booth with grit blast booth in accordance with technical requirement VIBB# 19-40-1015 (attached) to include:

Plasma Spray Booth | Technical Data | Training | IUID Tag | Removal of Existing Equipment | Installation | Shipping

4. The statutory authority permitting other than full and open competition is 10 U.S.C. 2304(c)(1) – Available from only one or limited number of sources.

5. The acquisition is restricted to the only source(s) of supply known to have the capability of furnishing the required supplies/services. Source(s) are:

CAGE	COMPANY NAME
01FK3	Oerlikon Metco (US) Inc.

The use of authority 10 U.S.C. 2304(c)(1) is based on:

10 U.S.C. 2304(c)(1); FAR 6.302-1(b)(1)(i) and FAR 6.302-1(b)(2) The new plasma spray booth with grit blast booth shall fully replace the existing dilapidated plasma metal spray system and provide the functionality to spray coat customer equipment as specified in the depot level technical manuals. The technical publications for the thermal spray coatings process and the actual engines to be sprayed is not under the control of the Government, they are under the control of OEM General Electric. The OEM (GE) owns the proprietary equipment (engines & accessories) and the proprietary thermal spray coating process that calls for the specific use of Metco supplies and material. The Metco supplies and material are available from only one responsible source and no other supplies or services will satisfy agency requirements. The OEM thermal coating process which calls out Metco supplies and material in the depot level technical manuals are therefore, deemed to be available only from the original source in the case of a follow-on contract for the continued development or production of a major system or highly specialized equipment, including major components thereof, when it is likely that award to any other source would result in unacceptable delays in fulfilling the agency's requirements. The metal spray shop at Fleet Readiness Center South West (FRCSSW) provides services and support to OEM (GE) customer owned equipment that include: LM2500, FA-18, and E-2/C-2 platforms. The procedure for thermal spraying as outlined in technical manuals S9234-AB-MMD-010, S9234-AB-MMD-020, and S9234-AB-MMD-040 currently call for required materials from Metco Inc. to complete procedure parameters that ensure a satisfactory method of development for coating parts. In order to assure satisfactory coating of platform parts, testing is incorporated as part of the approval and acceptance process.

6. Efforts to ensure that offers are solicited from as many sources as practicable are:

- ☒ The acquisition will be synopsized on or about 10May2022 and any firm requesting a solicitation copy will be provided one.
- ☐ A synopsis exception cited in FAR 5.202 applies: (Explain)

- ☒ Manufacturers of similar products identified in the market survey will be solicited.
- ☒ Dealers of the manufacturers will be solicited.
- ☐ Other: (Explain)

7. I hereby determine that the anticipated cost to the Government will be fair and reasonable. (Explain)

Other Than Certified Cost And Price data Will Be Required, Commercial Invoices Will Be Required. In Accordance With FAR 13.106-3(a); Basis for award. Before Making Award, The Contracting Officer Will Determine That The Proposed Price For This Acquisition Will Be Fair And Reasonable.

8. A market survey as defined by FAR 10:

- ☒ was conducted, and firms indicating an interest in the acquisition will be solicited. Market research efforts, include:

Request For Quotation Solicitation Will Be Posted On DIBBS website. A sources sought was posted to SAMS.GOV on 22Feb2022 and closed 28FEB2022 with no responses. Reviewed catalogs and other generally available product literature published by manufacturers, distributors, and dealers or available on-line. Market research has included vendor contacts, trade shows, Internet research, review of historical data files, and personal machine shop experience using similar equipment.

- ☐ was not conducted due to the unusual and compelling urgency of the requirement.
- ☐ was not conducted due to:

9. Additional facts supporting other than full and open competition are:

- ☒ Based upon the technical certification on file, technical data is not available and cannot be developed to permit full and open competition. The data presently available reflects the minimum needs of the Government.
- ☐ When FAR 6.302-1 is cited for substantial duplication of costs in the case of a follow-on acquisition as described in 6.302-1(a)(2)(ii)(A), an estimate of the cost to the Government that would be duplicated and how the estimate was derived:

- ☐ When FAR 6.302-1 is cited for unacceptable delays in the case of a follow-on acquisition as described in 6.302-1(a)(2)(ii)(B), describe the unacceptable delays:

- ☐ Other:

10. A listing of sources, if any, indicating an interest in writing in the acquisition are: (if none, state none)

CAGE	COMPANY NAME
01FK3	OERLIKON METCO

11. The actions, being taken to overcome barriers to competition before any subsequent acquisition are made: (Explain)

The current OEM (GE) proprietary thermal spray process as well as the customer engine depot maintenance are governed by OEM (GE). Current acquisitions of this type are bound to the proprietary procedure, supplies and material listed in the technical manuals. Market research will be completed to determine whether the OEM has changed requirements, allowing for additional competition.

APPROVAL

APPROVAL LEVELS OF THE JUSTIFICATION – FAR 6.304

- ☐ not exceeding \$750,000... Contracting Officer
- ☒ over \$750,000 not exceeding \$15,000,000... Competition Advocate

TECHNICAL/REQUIREMENTS PERSONNEL CERTIFICATION – FAR 6.302-2(c)

Supporting data that is the responsibility of technical or requirements personnel and which form the basis for this justification have been certified as complete and accurate by the cognizant technical/requirements Personnel. Signature of technical/requirements personnel is not required.

DLA COUNSEL AVIATION – DLAD 1.691(e)(ii)

DLA Counsel Aviation has reviewed the information contained in this justification and concluded it is legally sufficient.

Linwood I. Rogers, Deputy Chief Counsel	ROGERS.LINWOOD.I Digitally signed by ROGERS.LINWOOD.I Date: 2022.06.03 09:17:41 -04'00'		
Name and Title	Signature	Phone	Date

CONTRACTING OFFICER – FAR 6.303-2(b)(12)

I hereby certify that the information contained in this justification is accurate and complete to the best of my knowledge and belief. If not exceeding \$750,000, this signature serves as the approval.

Ashley Saunders, Contracting Officer	SAUNDERS.ASHLEY.A Digitally signed by SAUNDERS.ASHLEY.A Date: 2022.06.03 10:38:02 -04'00'		
Name and Title	Signature	Phone	Date

COMPETITION ADVOCATE – FAR 6.304(a)(2)

The Competition Advocate for the procuring activity designated pursuant to FAR 6.501 has reviewed and approved this Justification for a proposed contract over \$750,000 but not exceeding \$15 million.

Yolanda Calvin Maupin / Senior Procurement Analyst	MAUPIN.YOLANDA.C Digitally signed by MAUPIN.YOLANDA.C Date: 2022.06.06 06:19:23 -04'00'		June 6, 2022
Name and Title	Signature	Phone	Date